

sanction (*b*). Private contracts, therefore, after the institution of a suit, can only be entered into by trustees subject to

(*b*) *Walker v. Smalwood, Amb. Culpepper v. Aston*, 2 Ch. Ca. 116, 676; and see *Raymond v. Webb, Loft*, 223; and see further, *infra*. 66; *Drayson v. Pocock*, 4 Sim. 283;

*Jones*, 5 Leigh, 370. If proper notice was given an error in its recital in the deed will not vitiate it; *O'Neil v. Vanderburg*, 25 Ia. 104. A purchaser cannot avoid purchase by questioning the notice; *Cassell v. Ross*, 33 Ill. 244; *Greenleaf v. Queen*, 1 Pet. 145. A stranger may post the notices and conduct the sale if the trustee ratify his acts; *Johns v. Sergeant*, 45 Miss. 332; but a stranger cannot object to the sale; *Herbert v. Hanrick*, 16 Ala. 581; *Wightman v. Doe*, 24 Miss. 675; *Larco v. Casaneuava*, 30 Cal. 500; and the proceedings cannot be collaterally attacked; *Williams v. Munroe*, 67 N. C. 164; *Reid v. Mullins*, 48 Mo. 344. If the cestui que trust waives irregularities, no one else can object; *Schenck v. Ellingwood*, 3 Edw. Ch. 175; and there is always a presumption of correctness; *Marshall v. Stephens*, 8 Humph. 159.

A power of sale must be exercised exactly in accordance with its terms and conditions; *Alley v. Lawrence*, 12 Gray, 373; *Mills v. Traylor*, 30 Tex. 7; *Young v. Van Benthuyzen*, 30 Tex. 762; *Berrien v. Thomas*, 65 Ga. 61; *Bartlett v. Bamber*, 81 Pa. St. 247; *James v. Cowing*, 17 Hun, 256; *Loring v. Salisbury Mills*, 125 Mass. 138; *Scott v. Sierra Lumber Co.* 67 Cal. 71; a sale on credit is bad, if cash was required; *Waterman v. Spaulding*, 51 Ill. 425; *Palmer v. Williams*, 24 Mich. 328; or for less than sum named; *Cadwell v. Brown*, 36 Ill. 103; *Drusadow v. Wilde*, 63 Pa. St. 170. A sale before the happening of specified events is bad; *Davis v. Howcott*, 1 Der. & Bat. Ch. 460; *Ervine's App.* 16 Pa. St. 256; *Loomis v. McClinton*, 10 Watts, 274; *Blacklow v. Laws*, 2 Hare, 40. A power to sell when income is insufficient for support cannot be exercised until then; *Minot v. Prescott*, 14 Mass. 495; a sale within a limited period by deed dated after is good; *Harlan v. Brown*, 2 Gill, 475. A trustee may, if allowed to exercise his discretion, not be disturbed, unless guilty of fraud; *Greer v. McBeth*, 12 Rich. Eq. 254; *Bunner v. Storm*, 1 Sandf. Ch. 357. A trustee may exercise his power so long as anything remains to be done; *Cresson v. Ferree*, 70 Pa. St. 446; afterwards the power terminates; *Ward v. Barrows*, 2 Ohio St. 241; *Sharpsteen v. Tillou*, 3 Cow. 651; and a court may for that cause forbid a sale; *Murdock v. Johnson*, 7 Coldw. 605.

Sometimes a power of sale will be exercised only in case of great urgency; *Goddard v. Brown*, 12 R. I. 31. The court may elect between a sale and an extension of time in which to redeem; *Johns v. Smith*, 56 Miss. 727. A sale on a general election day is not sufficient ground for avoiding it; *Bank of Commerce v. Lanahan*, 45 Md. 396. A sale with great loss requires that the need of the sacrifice should be shown; *Cocke v. Minor*, 25 Gratt. 246. A wrongful sale passes no title; *Welch v. Greenalge*, 2 Heisk. 209; *Mills v. Traylor*, 30 Tex. 7. If a sale is to be by consent of majority, the meaning is a majority of those living; *Sohier v. Williams*, 1 Curtis, 479; *Leeds v. Wakefield*, 10 Gray, 514. A power is defeated by death of one whose consent is required; *Alley v. Lawrence*, 12 Gray, 373; unless it be a person, practically a corporation sale; *Barber v. Cary*, 1 Kern. 397. If there is a power to sell if personal property is insufficient to pay debts, it must be proven; *Graham v. Little*, 5 Ired. Eq. 407; *Roseboom v. Mosher*, 2 Denio, 61, and trustees must